

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2610
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-461.17, Arizona Revised Statutes, is amended
3 to read:

4 9-461.17. Telecommunications utility relocation; cost
5 reimbursement; definitions

6 A. ~~To the fullest extent allowed by law,~~ If any construction
7 project in any municipality that is undertaken individually or jointly by
8 an intergovernmental contract [and that is funded in whole or in part by
9 voter-approved municipal bond proceeds] requires that a telecommunications
10 utility adjust or otherwise relocate the telecommunications utility's
11 facilities, the municipality shall reimburse the telecommunications
12 utility, or cause the telecommunications utility to be reimbursed, for the
13 telecommunications utility's relocation costs incurred on facilities
14 located within the municipal boundaries.

15 B. If the telecommunications utility has existing land rights, the
16 municipality shall provide at the municipality's expense the
17 telecommunications utility with equal land rights in the new location of
18 the relocated facilities. If the telecommunications utility's existing
19 facilities are located in the right-of-way under a permit, the
20 municipality shall provide at the municipality's expense the
21 telecommunications utility with rights in the new location of the
22 relocated facilities equivalent to the telecommunications utility's
23 existing rights under the permit.

24 C. A telecommunications utility shall submit a verified itemized
25 claim to the municipality for reimbursement of relocation costs within one
26 hundred eighty days after each calendar quarter in which a
27 telecommunications utility incurs relocation costs.

28 D. The municipality shall:

1 1. Review each verified itemized claim submitted pursuant to
2 subsection C of this section. The review may include an audit conducted
3 pursuant to standard industry accounting principles.

4 2. Reimburse the telecommunications utility for the relocation
5 costs within ninety days after receipt of the verified itemized claim.

6 3. Reimburse verified itemized claims from all affected
7 telecommunications utilities in the order of receipt.

8 4. PROVIDE PUBLIC NOTICE OF ANY VOTER-APPROVED MUNICIPAL BOND
9 PROJECT AT LEAST NINETY DAYS BEFORE A REQUEST TO RELOCATE A
10 TELECOMMUNICATION UTILITY'S FACILITY. FOR THE PURPOSES OF THIS PARAGRAPH,
11 A MUNICIPALITY SHALL PROVIDE THE PUBLIC NOTICE BY PUBLISHING THE NOTICE IN
12 A NEWSPAPER OF GENERAL CIRCULATION WITHIN THE MUNICIPALITY OR BY POSTING
13 THE NOTICE ON THE MUNICIPALITY'S WEBSITE.

14 5. DEVELOP A GENERALLY APPLICABLE, NONDISCRIMINATORY REIMBURSEMENT
15 PROCESS FOR A TELECOMMUNICATION UTILITY TO APPLY FOR REIMBURSEMENT OF THE
16 RELOCATION COSTS OF THE TELECOMMUNICATION UTILITY'S FACILITIES.]

17 E. The reimbursement limitation for paid claims of relocation costs
18 for telecommunications utility facilities for which there are no existing
19 land rights is not more than two percent of the total project monies.
20 [The total of the project monies is the total dollar amount of all
21 voter-approved municipal bond proceeds that fund a construction project
22 from time to time.]

23 F. The total amount of reimbursement paid for claims of relocation
24 costs of all telecommunications utility facilities for which there are no
25 existing land rights may not exceed the reimbursement limitation.

26 G. If a verified itemized claim causes the total amount of all
27 claims for telecommunications utility relocation costs to exceed the
28 reimbursement limitation, that claim shall be reduced so that the total
29 amount of reimbursement paid for all claims for which there are no
30 existing land rights equals the reimbursement limitation.

31 H. If the dollar amount of the reimbursement limitation increases
32 as a result of an increase in total project funds after the previous
33 reimbursement limitation is exhausted, within thirty days after the
34 reimbursement limitation is increased the municipality shall resume
35 processing previously submitted and new verified itemized claims under
36 this section.

37 I. The reimbursement limitation does not apply to any claims for
38 reimbursement of relocation costs for telecommunications utility
39 facilities with existing land rights or any amounts paid by the
40 municipality to provide equivalent land or permit rights. These claims
41 and amounts are excluded from the reimbursement limitation.

42 J. This section does not:

43 1. Apply to a construction project funded in whole or in part with
44 voter-approved municipal bond proceeds if approval of the bonds was
45 referred to the voters, or the initiative petition for the bonds was
46 applied for, before January 1, 2017.

1 2. Prohibit a municipality from complying with other applicable
2 law, or with an agreement, that requires the municipality to reimburse a
3 telecommunications utility for more relocation costs than this section
4 provides.

5 K. For the purposes of this section:

6 1. "Intergovernmental contract" means the joint exercise of powers
7 authorized by title 11, chapter 7, article 3.

8 2. "Municipality" includes a charter city.

9 3. "Relocation costs" means all costs of relocating a
10 telecommunications utility's facilities that the telecommunications
11 utility incurs as a direct result of the construction and operation of a
12 construction project. Relocation costs do not include profit but may
13 include a reasonable allocation of general overhead expenses.

14 4. "Telecommunications utility" means any public service
15 corporation, licensed cable television operator, video service provider,
16 telephone line or telegraph line corporation, agricultural improvement
17 district or other person engaged in the transmission, sale or delivery of
18 telecommunications, telephone, cable television, video, internet or
19 telegraph service directly to the public or to other users as to be
20 effectively available directly to the public.

21 Enroll and engross to conform

22 Amend title to conform

And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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